INDEPENDENT CONTRACTOR AGREEMENT

Payment terms revision: hours-worked-limited-cancellation-v1

This Independent Contractor Agreement ("Agreement") is made and entered into on _____, by and between Emanuel Labor Services LLC, a Louisiana limited liability company (the "Company"), and _____ (the "Contractor").

WHEREAS, the Company desires to contract with the Contractor for the performance of certain labor and staffing services; and WHEREAS, the Contractor represents that they operate an independent business, have complied with all federal, state, and local laws regarding business permits and licenses, and certify to the statements listed in Appendix A; NOW, THEREFORE, in consideration of the mutual promises contained herein, the Parties agree as follows:

1. Services to Be Performed

Contractor shall provide temporary labor or staffing services on a per-job basis. Contractor retains full control over how services are performed, subject to Company's right to inspect work and ensure compliance with client requirements and industry standards.

2. Payment

Compensation for Services Actually Rendered.

Except for the limited cancellation compensation expressly provided below, Contractor shall be entitled to compensation solely for hours actually worked in the performance of authorized services, at the rates agreed upon by the parties. The listing, scheduling, confirmation, or anticipated duration of an assignment shall not constitute a guarantee of compensation for the entire event, project, job, or any unworked portion thereof.

Contractor shall submit an invoice detailing the services rendered and hours actually worked. All payable time shall be substantiated by approved time records, sign-in/sign-out records, client or crew lead confirmation, or other documentation accepted by Company. Payment shall be made within thirty (30) days of receipt of an approved invoice. If payment is scheduled beyond thirty days, Contractor shall be notified and must agree to the payment terms before accepting the assignment.

Except as expressly provided in the limited cancellation provision below, no compensation shall accrue for any shift or portion thereof not actually worked, including a no-show, call-out, refusal of assignment, late arrival after replacement, or unapproved early departure.

Limited Cancellation Compensation; One-Workday Maximum.

If Company or its client cancels a confirmed workday and notice of cancellation is given twenty-four (24) hours or less before that workday's scheduled commencement, Contractor shall be entitled to cancellation compensation for one (1) canceled workday only. Such compensation shall equal the agreed compensation for the first canceled workday qualifying under this provision, calculated at the agreed daily rate or, if an hourly rate applies, the agreed hourly rate multiplied by the hours scheduled for that workday.

Cancellation compensation shall not exceed one (1) workday for the canceled job or assignment, regardless of the number of scheduled workdays canceled. Under no circumstances shall cancellation of a workday or a multi-day assignment entitle Contractor to compensation for the entire job, event, project, remaining scheduled days, or other anticipated but unworked hours. This limitation applies only to cancellation compensation and shall not reduce compensation owed for hours actually worked.

No cancellation compensation shall be due where notice is given more than twenty-four (24) hours before the canceled workday's scheduled commencement. This provision applies solely to cancellation by Company or its client and not to Contractor's own cancellation, inability to perform, or failure to report for work.

3. Term & Termination

This Agreement shall commence on the Effective Date and shall continue until terminated by either Party. Either Party may terminate this Agreement with five (5) days' prior written notice, except in cases of immediate termination due to breach, safety violations, or conflicts of interest. This Agreement terminates immediately upon the death of the Contractor.

4. Instrumentalities/Tools/Supplies

Contractor shall provide their own tools, equipment, and materials unless otherwise agreed upon in writing. If the Company agrees in writing to reimburse certain expenses, Contractor must submit appropriate documentation with the invoice.

5. Compliance with Client Requirements

Contractor shall comply with any specific project requirements set forth by the Company's clients, including but not limited to background checks, security clearances, drug testing, or other venue policies.

6. Conflicts of Interest and Immediate Notification

Contractor shall not engage in any activity that conflicts with the Company's interests and must immediately disclose any potential conflicts, safety concerns, or security issues.

7. Independent Contractor Status & Insurance

Contractor is an independent contractor and not an employee of the Company. Contractor shall obtain and maintain all necessary workers' compensation, general liability, and other required insurance at their own expense. Contractor must provide proof of insurance upon request.

8. Taxes & Benefits

Contractor is responsible for all federal, state, and local taxes, including but not limited to income tax, Social Security, Medicare, and unemployment taxes. Company shall not provide any employment benefits, including health insurance, retirement, or workers' compensation.

9. Confidential Information

Contractor shall not disclose, use, or exploit the Company's proprietary information, trade secrets, client lists, or operational methods. Any breach of confidentiality may result in legal action, including injunctive relief.

10. Work Quality and Professionalism

Contractor agrees to maintain a high standard of professionalism, including punctuality, appropriate attire, and respectful conduct toward clients and colleagues. Contractor must complete assignments professionally and in accordance with industry standards.

11. Dispute Resolution & Arbitration

Any disputes arising under this Agreement shall be resolved through binding arbitration in New Orleans, Louisiana, in accordance with the Federal Arbitration Act. No class-action or collective arbitration shall be permitted. The prevailing party shall be entitled to recover reasonable attorney's fees and costs.

12. Indemnification

Contractor shall fully indemnify and hold harmless the Company, its agents, and employees from any claims, demands, liabilities, or damages arising from Contractor's services, including but not limited to injury claims, contract breaches with clients or tax obligations. This indemnification applies even after termination of the Agreement and is not limited by insurance coverage.

13. Non-Solicitation

Contractor agrees that for a period of one (1) year after termination of this Agreement, they shall not solicit or work directly for the Company's clients in a manner that bypasses the Company's involvement.

14. Notices

All notices must be in writing and delivered personally, via certified mail, or by electronic means that provide proof of delivery.

15. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Louisiana.

16. Entire Agreement & Severability

This Agreement represents the entire understanding between the Parties and supersedes any prior agreements. If any provision is found invalid, the remainder shall remain in full force and effect.

APPENDIX A: CERTIFICATION OF INDEPENDENT CONTRACTOR STATUS

[ ] Contractor is an independent contractor and not an employee of the Company.

[ ] Contractor maintains their own business and works with multiple companies.

[ ] Contractor provides their own tools, equipment, and materials.

[ ] Contractor determines how services are performed and is not under direct Company control.

[ ] Contractor is responsible for their own insurance, taxes, and business expenses.

[ ] Contractor acknowledges that they do not receive employee benefits from the Company.

[ ] Contractor understands that failure to comply with client requirements may result in removal from a project.

[ ] Contractor acknowledges that compensation is limited to hours actually worked, except for the express cancellation provision, which permits compensation for no more than one canceled workday when Company or its client cancels within twenty-four (24) hours of its scheduled commencement, and does not provide payment for the entire job.

[ ] Contractor agrees to indemnify the Company against liabilities arising from their work.

[ ] Contractor agrees to adhere to professional standards, including punctuality, attire, and conduct.

Contractor Signature: _____ Date: _____

Company Representative (Emanuel Labor Services LLC): _____ Date: _____